

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF CHURSIN AND OTHERS v. RUSSIA

(Applications nos. 38648/21 and 18 others –
see appended list)

JUDGMENT

STRASBOURG

11 April 2024

This judgment is final but it may be subject to editorial revision.



In the case of Chursin and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 21 March 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 10-11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a violation of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 11 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	38648/21 15/07/2021	**Aleksandr Ivanovich CHURSIN** 1989	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 13 days	Moscow City Court 08/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
2.	38650/21 15/07/2021	**Valentina Sergeyevna PEREGUDOVA** 1990	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 7 days	Moscow City Court 24/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
3.	55914/21 29/10/2021	**Maksim Vladimirovich POPOV** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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4.	61251/21 19/11/2021	**Ruslan Aleksandrovich FOMIN** 1984	Vanslova Yekaterina Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 20/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.00 p.m. to 9.20 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	61344/21 03/12/2021	**Aleksey Davidovich CHICHINADZE** 1989	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/08/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.45 a.m. to 8.40 p.m. on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	61348/21 03/12/2021	**Natalya Sergeyevna SMILGA** 1997	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 07/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.00 p.m. on 02/02/2021 to 3.30 p.m. on 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	61356/21 03/12/2021	**Dmitriy Sergeyevich ZAVALISHIN** 1987	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 07/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. to 8.00 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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8.	61727/21 10/12/2021	**Diana Vasilyevna SHARIPOVA** 2002	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Nizhniy Novgorod Regional Court 23/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.10 p.m. to 7.50 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	991/22 25/11/2021	**Aleksey Sergeyevich STARKOV** 1993	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 27/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 p.m. to 11.30 p.m. on 31/01/2021, the applicant spent 4h30 in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	35552/22 28/06/2022	**Ivan Valeryevich TEREKHOV** 2000	Markin Konstantin Aleksandrovich Velikiy Novgorod	Anti-war protest Velikiy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Novgorod Regional Court 22/04/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.20 p.m. to 9.00 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	36533/22 11/07/2022	**Nikolay Vladimirovich KOMYAGIN** 1987	Loktev Sergey Aleksandrovich St Petersburg	Anti-war protest St Petersburg 25/02/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 26/04/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 25/02/2022 to 26/02/2022, hearing in the applicant's administrative-offence case,	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
12.	39846/22 29/07/2022	**Georgiy Petrovich MIKHAYLOV** 1985	Magomedova Luiza Magomedovna St Petersburg	Anti-war protest St Petersburg 27/02/2022	article 20.2 § 5 of CAO	administrative detention of 10 days	St Petersburg City Court 12/04/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.40 p.m. on 27/02/2022 to 01/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	45035/22 24/08/2022	**Irina Nasikhovna MANSUROVA** 2001	Baranova Natalya Andreyevna Moscow	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 18/05/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.25 p.m. to 7.25 p.m. on 26/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	46493/22 12/09/2022	**Valeriya Vyacheslavovna POYMAKOVA** 1998	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 13/05/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.10 p.m. on 06/03/2022 to 3.45 p.m. on 07/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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15.	47108/22 12/09/2022	**Dmitriy Yuryevich KHVAN** 1990	Baranova Natalya Andreyevna Moscow	Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 05/07/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.15 p.m. on 24/02/2022 to 1.00 a.m. on 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	47129/22 14/09/2022	**Aleksandr Sergeyevich GARYAYEV** 1991	Baranova Natalya Andreyevna Moscow	Anti-war protest Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	39 hours of community works	Sverdlovsk Regional Court 08/06/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.30 p.m. to 11.30 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	47607/22 14/09/2022	**Nadezhda Sergeyevna SKULKINA** 1998	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 25/05/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.10 p.m. on 06/03/2022 to 1.00 a.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	48748/22 12/09/2022	**Artem Vladimirovich SHKALOV** 1992		Anti-war protest St Petersburg 03/03/2022	article 20.2 § 6.1 of CAO	fine of RUB 12,000	St Petersburg City Court 12/05/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.30 p.m. on 03/03/2022 to 4.50 p.m. on 06/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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19.	50600/22 08/10/2022	**Yekaterina Olegovna STRUTSENKO** 1991	Zyryanova Mariya Sergeyevna St Petersburg	Anti-war protest St Petersburg 27/02/2022	article 20.2 § 6.1 of CAO	fine of RUB 15,000	St Petersburg City Court 09/06/2022	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 27/02/2022 to 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.